

CHAPTER 9

An Act to amend certain provisions of the Ministers of the Crown Act, 1937, relating to Parliamentary Under-Secretaries. [7th December 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Numbers of
Parliamentary
Under-
Secretaries.
1 Edw. 8 &
1 Geo. 6. c. 38.

1.—(1) For subsection (2) of section two of the Ministers of the Crown Act, 1937 (which specifies the numbers of Parliamentary Under-Secretaries within the meaning of that Act to whom salaries may be paid thereunder) there shall be substituted the following subsection:—

“(2) The number of Parliamentary Under-Secretaries to whom salaries may be paid under this Act in the case of any Department of State shall not exceed—

- (a) in the case of the Treasury and the Scottish Office, three each;
- (b) in the case of the Admiralty, the Board of Trade, the Foreign Office, the Home Office, the Ministry of Agriculture and Fisheries and the War Office, two each;
- (c) in the case of any other Department mentioned in the Second Schedule to this Act, and in the case of the Post Office, one each.”

(2) For paragraph (c) of the proviso to subsection (1) of section nine of the said Act (which regulates the number of Parliamentary Secretaries within the meaning of that Act who may sit and vote in the House of Commons) there shall be substituted the following paragraph:

“(c) the number of persons entitled to sit and vote in that House while they are Parliamentary Under-Secretaries shall not exceed twenty-two.”

(3) In the Second Schedule to the said Act (which specifies certain Departments of State whose Parliamentary Secretaries may receive salaries thereunder) the words “Burma Office” and “India Office” shall cease to have effect.

(4) The enactments and regulations described in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Short title.

2. This Act may be cited as the Ministers of the Crown (Parliamentary Under-Secretaries) Act, 1951.

SCHEDULE

Section 1.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
1 Edw. 8 and 1 Geo. 6. c. 38.	The Ministers of the Crown Act, 1937.	In the Second Schedule, the words "Burma Office" and "India Office".
2 & 3 Geo. 6. c. 38.	The Ministry of Supply Act, 1939.	In section one, paragraph (d) of subsection (3).
8 & 9 Geo. 6. c. 19.	The Ministry of Fuel and Power Act, 1945.	So much of the Second Schedule as amends sections two and nine of the Ministers of the Crown Act, 1937.
9 & 10 Geo. 6. c. 31.	The Ministers of the Crown (Transfer of Functions) Act, 1946.	In section seven, in paragraph (b) of subsection (1) the words "and in paragraph (b) of subsection (2) of section two".
11 & 12 Geo. 6. c. 5.	The Ministers of the Crown (Treasury Secretaries) Act, 1947.	In section one, paragraph (b).

Regulations

The Defence (Parliamentary Under-Secretaries) Regulations, 1940.	The whole of the Regulations.
--	-------------------------------

